

HERMES PROOF-OF-CONCEPT SERVICES AGREEMENT

Draft for review — complete all bracketed fields before signing.

This Proof-of-Concept Services Agreement (the “**Agreement**”) is made on **[18 August 2026]** between:

1. **[CLIENT'S FULL LEGAL NAME]** (Company No. **[SSM NUMBER]**), of **[REGISTERED ADDRESS]** (the “**Client**”); and
2. Zanarkand Technologies LLC, a limited liability company incorporated in the State of Wyoming, United States, with entity ID 2025-001850291, of 30 N Gould St, Ste R, Sheridan, Wyoming 82801, United States (the “**Service Provider**”).

The Client and the Service Provider are each a “**Party**” and together the “**Parties**.”

1. Purpose and term

1.1 The Client appoints the Service Provider to configure and demonstrate a limited proof of concept of the **Hermes AI agent** for one Client department (the “**POC**”), and the Service Provider accepts that appointment on the terms of this Agreement.

1.2 The Agreement starts on the date above and continues until the POC and the short support period in clause 5 are completed, unless ended earlier under clause 14.

1.3 The Parties intend the POC to test feasibility. It is not a production deployment, organisation-wide rollout, managed service, or promise of future work.

2. Services and deliverables

2.1 The Service Provider will use reasonable skill and care to deliver the following for one agreed department:

- (a) one configured Hermes agent POC;
- (b) a connection to an agreed, access-controlled part of the Client's Notion workspace so the POC can review selected projects or tasks against one agreed completeness rubric;
- (c) a private Telegram interface for one authorised Client representative to query the POC and receive or demonstrate management summaries and follow-up drafts;
- (d) a connection to one approved Google Drive folder for limited search and reading of POC material;
- (e) a connection to one approved email account or test mailbox for demonstrating email drafting or retrieval, but **not autonomous external sending** unless the Client separately approves a specific send in writing; and
- (f) a short written handover note identifying how to access, operate, pause, and test the POC.

2.2 The target delivery deadline is **5:00 p.m. Malaysia time on Friday, 21 August 2026**.

2.3 Delivery dates depend on the Client providing the dependencies in clause 3 on time. A delay caused by missing, incorrect, restricted, or late Client access extends the delivery deadline by the period reasonably affected.

2.4 The following are outside the RM1,000 scope: organisation-wide rollout; production hardening; guaranteed uptime; unattended daily or weekly scheduled operation; autonomous staff follow-up; custom mobile or web applications; historical data migration; paid third-party subscriptions; property lead generation; advertising; inventory, POS, SiteGiant, Shopee, accounting, HR, or WhatsApp automation; custom features not stated in clause 2.1; and ongoing maintenance after clause 5. The POC may demonstrate a daily summary and follow-up draft, but production scheduling and autonomous delivery require a later agreement.

3. Client responsibilities

3.1 The Client will, by 5:00 p.m. Malaysia time on 19 August 2026:

- (a) nominate one decision-maker and one pilot department;
- (b) provide timely access to the approved Notion pages, Google Drive folder, Telegram bot/chat, and email test account required for the POC;
- (c) provide the task template or rubric to be demonstrated, or approve the Service Provider's proposed sample;
- (d) ensure it has the authority, notices, consents, and lawful basis required to provide and process the selected data; and
- (e) provide prompt decisions and feedback reasonably needed for delivery.

3.2 The Client must use invited accounts, OAuth, API credentials, or another controlled access method where reasonably available. The Client must not send passwords or secret keys through ordinary chat or include them in this Agreement.

3.3 Unless separately agreed in writing with additional safeguards, the Client must use synthetic, redacted, or low-risk pilot data and must not provide health data, identity documents, payment-card data, passwords, highly sensitive employee records, or other sensitive personal data.

4. Fee and payment

4.1 The total fixed POC fee is **RM1,000.00 (“Fee”)**, excluding any applicable tax and third-party subscription or usage charges expressly approved by the Client.

4.2 The Service Provider may invoice the Fee upon signing. The Client must pay the Fee in full no later than **21 August 2026**, against delivery of the POC demonstration described in Schedule 1.

4.3 Payment must be made by bank transfer to the account shown on the Service Provider's invoice. The Client may not withhold payment because of a minor issue that does not materially prevent the agreed demonstration.

5. Acceptance and limited support

5.1 The Service Provider will demonstrate the POC live or provide access and reasonable evidence showing the checks in Schedule 1.

5.2 The Client has **two business days** after delivery to identify in writing any material failure against Schedule 1. If no such notice is received, the POC is accepted.

5.3 For a valid material failure notice, the Service Provider will use reasonable efforts to correct the failure within **three business days**, provided it falls within clause 2.1 and is not caused by a third-party service or missing Client dependency.

5.4 The Fee includes five business days of reasonable remote support after acceptance, limited to correcting reproducible failures within the agreed scope. Enhancements, changed requirements, new integrations, training, and ongoing support require a separate written agreement.

6. Changes

No change to the scope, deadline, deliverables, or Fee is binding unless recorded in writing and accepted by both Parties. A message or email is sufficient if it clearly states the change and any effect on price or timing.

7. Confidentiality

7.1 **“Confidential Information”** means non-public business, financial, technical, operational, customer, employee, supplier, property, inventory, security, system, software, prompt, workflow, document, recording, transcript, message, credential, or other information disclosed by or for a Party in connection with the POC, whether disclosed orally, visually, electronically, or in writing.

7.2 Each receiving Party will:

- (a) use the other Party's Confidential Information only for the POC;
- (b) protect it with at least reasonable care;
- (c) disclose it only to people or approved service providers who need it for the POC and are subject to equivalent confidentiality duties; and
- (d) not disclose it to any other person without prior written approval.

7.3 Clause 7 does not cover information that the receiving Party can show: was already lawfully known without restriction; becomes public without breach; is independently developed without using the Confidential Information; or is lawfully received from another person without a confidentiality duty.

7.4 A Party may make a disclosure required by law, but where legally permitted it must give the other Party prompt notice and disclose only what is required.

7.5 These confidentiality duties continue for three years after this Agreement ends. Trade secrets remain protected for so long as they remain trade secrets under applicable law.

7.6 Neither Party may use the other's name, logo, testimonial, project details, or relationship in publicity, a portfolio, or marketing without prior written approval.

8. Data protection and security

8.1 For personal data processed solely on the Client's instructions, the Client acts as data controller and the Service Provider acts as data processor, using the terminology of Malaysia's Personal Data Protection Act 2010 ("**PDPA**").

8.2 The Service Provider will:

- (a) process Client data only as needed to perform this Agreement and on the Client's documented instructions;
- (b) apply reasonable safeguards, including least-privilege access, access-controlled accounts, multi-factor authentication where available, secure credential storage, and encryption in transit where supported;
- (c) not sell Client data, use it for advertising, or use it to train or improve a general-purpose AI model;
- (d) not upload Client data to an AI or cloud service not approved under Schedule 2;
- (e) ensure any person assisting with the POC is subject to confidentiality obligations;
- (f) notify the Client without undue delay, and where reasonably possible within 24 hours, after discovering suspected unauthorised access, loss, or disclosure of Client data; and
- (g) reasonably assist the Client with information needed to assess and respond to such an incident.

8.3 The Client authorises only the providers completed and initialled in Schedule 2. The Client acknowledges that an approved provider may process data outside Malaysia according to that provider's applicable terms. The Client is responsible for deciding whether the intended data and transfer are lawful; the Service Provider will provide reasonably available provider information for that assessment.

8.4 Within seven days after the POC and support period end, or earlier on written request, the Service Provider will return or permanently delete Client data in its control unless retention is legally required. This does not require alteration of inaccessible routine backups, which remain protected and will expire in the ordinary course.

8.5 The Client remains responsible for the accuracy and legality of Client data, privacy notices, data-subject communications, and instructions given to the Service Provider.

9. Intellectual property

9.1 "**Background Technology**" means software, code, templates, prompts, workflows, skills, evaluation methods, tools, know-how, documentation, and other material owned, licensed, or developed by a Party independently of this POC, including the Service Provider's Hermes platform and reusable components.

9.2 Each Party retains ownership of its Background Technology. The Client retains ownership of all Client data and materials it supplies.

9.3 Subject to full payment of the Fee, the Client owns the configurations, task templates, rubrics, and handover documents created specifically and exclusively for the Client under this Agreement ("**Client Deliverables**"), excluding all Background Technology.

9.4 To the extent Service Provider Background Technology is embedded in a Client Deliverable actually handed over to the Client, the Service Provider grants the Client a perpetual, non-exclusive, non-transferable, royalty-free licence to use that embedded Background Technology internally as part of that Client Deliverable. This licence does not transfer the Hermes platform, general source code, reusable skills, methods, development tools, or any third-party service to the Client.

9.5 Unless Schedule 1 expressly identifies a self-hosted runtime as a Client Deliverable, access to any Service Provider-hosted Hermes runtime ends when the support period in clause 5 ends. Continued hosting, live integrations, model usage, third-party subscriptions, maintenance, and production operation require a separate written agreement.

9.6 The Service Provider may reuse general skills, ideas, methods, and experience gained during the POC, but may not reuse or disclose Client Confidential Information, Client data, or Client-specific materials.

10. Third-party services

10.1 The POC depends on third-party services such as Notion, Google, Telegram, email, AI-model providers, internet services, and their APIs. Those services are governed by their own terms and may change, fail, impose limits, or incur charges outside the Service Provider's control.

10.2 The Service Provider is not responsible for a failure or delay caused by a third-party service, provided the Service Provider has used reasonable care in selecting, configuring, and operating the service within the agreed POC.

11. POC limitations and responsible use

11.1 The POC is experimental and may produce incomplete, inaccurate, or inconsistent output. The Client must apply human review before relying on output or sending any external communication.

11.2 The POC must not autonomously make employment, financial, legal, safety, disciplinary, or other high-impact decisions. It must not send external communications or change production records unless a separately agreed approval control is in place.

11.3 Except for the express commitments in this Agreement, no warranty is given that the POC will be uninterrupted, error-free, fit for production, or suitable for any particular commercial outcome.

12. Liability

12.1 Neither Party is liable to the other for indirect, consequential, exemplary, or special loss, or for loss of profit, revenue, goodwill, anticipated savings, or business opportunity arising from this Agreement.

12.2 To the maximum extent permitted by law, each Party's total aggregate liability arising from this Agreement will not exceed **RM1,000.00**.

12.3 Nothing in this Agreement excludes liability that cannot lawfully be excluded, or liability caused by fraud or wilful misconduct.

13. Relationship

The Service Provider acts as an independent contractor. Nothing creates employment, partnership, agency, fiduciary duty, exclusivity, or an obligation to enter a later project.

14. Termination

14.1 Either Party may terminate this Agreement by written notice if the other Party materially breaches it and does not remedy the breach within three business days after receiving written notice describing the breach.

14.2 Either Party may terminate immediately if continuing the POC would reasonably create a material security, legal, or data-protection risk.

14.3 The Client may terminate for convenience before delivery. In that event, the Client must pay for work reasonably completed up to termination, calculated proportionately and capped at the Fee.

14.4 Clauses concerning payment already due, confidentiality, data protection, intellectual property, liability, and general terms survive termination where their nature requires it.

15. General terms

15.1 This Agreement is the entire agreement about the POC and replaces earlier discussions about that POC. It does not govern any later rollout, retainer, property, lead-generation, advertising, inventory, accounting, training, or other project.

15.2 Neither Party may transfer this Agreement without the other's written consent, except to a successor acquiring substantially all of the transferring Party's relevant business and agreeing to these terms.

15.3 A failure to enforce a term is not a waiver. If a term is unenforceable, it will be limited or removed only to the minimum extent necessary, and the remaining terms continue.

15.4 Notices under this Agreement must be sent by email to the addresses stated below and are received when the sender receives no delivery-failure notification.

15.5 This Agreement may be signed in counterparts and by electronic signature. Each signed counterpart forms part of the same agreement.

15.6 This Agreement is governed by the laws of Malaysia. The courts of **[Kuala Lumpur / AGREED MALAYSIAN STATE]** have exclusive jurisdiction.

Signatures

Signed for and on behalf of the **Client**:

Legal name	[CLIENT'S FULL LEGAL NAME]

Authorised signatory	[NAME]
Title	[TITLE]
Email for notices	[EMAIL]
Signature	
Date	

Signed by/for the **Service Provider**:

Legal name	Zanarkand Technologies LLC
Authorised signatory	Phang Chang Xiong
Title	Sole Member
Email for notices	kenji@znrknd.com
Signature	
Date	

Schedule 1 — Delivery and acceptance checks

The POC is accepted when the Service Provider demonstrates, using agreed pilot data, that:

1. one authorised Client representative can access the private Telegram interface and submit a permitted query;
2. Hermes can retrieve relevant information from the approved Notion pilot area and identify at least one intentionally incomplete task against the agreed rubric;
3. Hermes can produce one management summary and one follow-up draft based on approved pilot information;
4. Hermes can retrieve an agreed test document from the approved Google Drive folder;
5. Hermes can demonstrate an email draft or agreed test-mailbox retrieval without autonomously sending an external message;
6. access is restricted to the agreed pilot department, accounts, and data locations; and
7. the Client receives the handover note described in clause 2.1(f).

Cosmetic issues and third-party service limitations do not prevent acceptance if the material POC flow above can be demonstrated.

Schedule 2 — Approved providers and data locations

Complete this schedule before granting access. Delete providers that will not be used.

Provider/service	POC purpose	Permitted data	Expected processing location / applicable account terms	Client initials
Notion	Pilot tasks and project context	Selected one-department projects, tasks, rubrics, and approved meeting summaries; no sensitive personal data	Client's Notion workspace and applicable Notion terms; Client to verify plan and processing locations	
Google Workspace / Drive	Approved file search and retrieval	Documents inside one Client-approved pilot folder; use redacted or low-risk files only	Client's Google Workspace account and applicable Google terms; Client to verify account and processing locations	
Telegram	Private management interface	Commands from one authorised representative, POC responses, management summaries, and follow-up drafts	Private Telegram bot/chat and applicable Telegram terms; Client to approve use	
[CLIENT'S EMAIL PROVIDER]	Test email drafting or retrieval	One test mailbox or expressly approved messages; no autonomous external sending	Client-controlled account and applicable provider terms; provider to be confirmed	
OpenRouter / final AI provider to confirm	AI inference for POC functions	Minimum excerpts from approved POC sources needed to generate the requested response; no sensitive personal data	Business/API terms, model routing, training status, and processing locations must be confirmed before live Client data is used	
[OTHER]	[PURPOSE]	[DESCRIBE]	[TERMS AND LOCATION]	